EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

Converts, Kohanim and Unknown Fathers

Even HaEzer, Gittin 129:5-9

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 129, Seifim 5-9 **Shiur:** A Dayanut shiur by Dayan Daniel Kada, Wednesday 29 December 2021

These notes are based on an automatic transcript of the recording.

Where We Are

The previous shiur covered Seifim 3 and 4: changes in the name (*shinui hashem*), and what happens when the get is sent from one place to another, with the various scenarios of lechatchila, bediavad and pasul. The plan for this shiur was to finish at least Seif 9: the **meshumad** (apostate) and the **ger** (convert), titles such as Kohen and Levi, and then the **father's name** and changes to it.

Part 1: Can a Meshumad Divorce? (Seif 5)

The Shulchan Aruch:

> **משומד אינו לגרש בשם גיות אלא בשם ישראל. ואם כתב שם גיות עיקר ושם ישראל בלשון דמתקרי, כשר** A meshumad does not divorce with his non-Jewish name but with his Jewish name. If he wrote the non-Jewish name as the main name and the Jewish name as "who is called," it is kasher.

Who is a meshumad?

Bepashtut, a meshumad is someone who has **consciously converted to another religion**, typically Christianity, and cut his ties with the Jewish community. "Obviously we have very few kind of meshumadim today." This is very different from someone who is simply no longer observant and has left the *derech* of Torah.

Can he give a get, and receive one for his daughter?

- **No one has a *tzad* that a meshumad cannot give a get.** A Jew remains a Jew.
- The **Beit Yosef** brings the **Ba'al HaAruch**, who is not clear whether a meshumad can divorce, or whether he can **receive a get on behalf of his daughter** (a *ketana*).
- The Beit Yosef rules, as is clear from the Shulchan Aruch, the Rema and all the Rishonim, that a meshumad **can** divorce and **can** receive a get for his daughter.
- But the **Pitchei Teshuva**, quoting the **Get Pashut**, distinguishes. All the Rishonim discussed divorcing, and that is fine. Receiving the get for his daughter, however, is a *zechut* (a privilege), and perhaps, because of the Aruch, that privilege does not apply once he has become a meshumad. The Rabbi suggested a way to understand it: a privilege is given to a Jew who acts as a Jew. "If he's only biologically Jewish, then he loses that *zechut*."

So: a meshumad certainly can divorce; whether he can receive his daughter's get is less clear.

A side question: gender transition

The Rabbi noted that this touches on the question of a man who transitions to live as a woman, and whether that person can still give a get, since "you could argue that he's a woman now." A student mentioned the sefer ***Dor Tahapuchot***, a work on transgender questions in halacha, which has a full discussion of the get. A student also raised the question discussed regarding Eliyahu HaNavi's wife, since Eliyahu did not die: was she still married? The Rabbi found it fascinating and asked for a copy of the sefer.

Part 2: Rabbeinu Tam and the Non-Jewish Name

The first to discuss this is **Rabbeinu Tam**. "It's always important to understand the context": this was Christian Europe, where Jews were converting to Christianity, which is why there is no mention of it in the Sephardi Rishonim.

Rabbeinu Tam uses strong language: a get has the status of ***Torat Moshe ve-Yisrael***, and one may not mention the name of a non-Jew in it. (The Rabbi noted in passing that there is a separate question whether a get needs *genizah*.)

What does Rabbeinu Tam mean? There is a machloket in understanding him:

Rishon	Reading of Rabbeinu Tam
Rosh	Write **only the Jewish name**, nothing else. This is no worse than *hanicha* (writing only one name), which the Rosh holds is kasher
Smag and Smak	Like the Rosh, but it is good to also refer to the non-Jewish name as a second name
Ran	Strongly disagrees. Rabbeinu Tam only meant you should write **both names**. You **cannot** write only the Jewish name, because **he is not known by it**

The Shulchan Aruch and the Rema

The plain meaning of the Shulchan Aruch is **not like the Ran**, but like the Rosh, Smag and Smak: write only the Jewish name, with no mention of the non-Jewish name, not even as a second name.

The **Rema** follows the **Smag and Smak**: write the Jewish name and then ***vechol shum*** (and any name he has), which alludes to the non-Jewish name without writing it.

The **Beit Shmuel** points out something striking. Rabbeinu Tam is the main proponent of the view that one never relies on *vechol shum* but writes the *de-mitkarei* explicitly (Seif 1). Yet here, **even Rabbeinu Tam concedes that one writes *vechol shum***, to refer to the non-Jewish name without mentioning a non-Jewish name in a get.

Halacha lema'aseh: we follow the Rema. Write the Jewish name followed by *vechol shum* (and add a *kinui* if he has one). Bediavad, the Beit Shmuel rules like the Rosh: if only the Jewish name was written, it suffices.

Part 3: What If the Non-Jewish Name Was Written?

The **Rema** says it is **pasul**. Why?

The Beit Yosef's first explanation. Rabbeinu Tam has the force of the *matbea shetav'u chachamim* (the formula fixed by the Sages). Since he said a non-Jewish name may not be written, writing one changes that formula, and the get becomes pasul. The Beit Yosef prefers this explanation.

The alternative explanation. Writing the non-Jewish name as the main name makes the **tafel into the ikar**. If he was Pinchas and is now called Paul, writing "Paul *de-mitkarei* Pinchas" makes the secondary name the main one. The Beit Yosef rejects this as the Rema's reason, because the Rema held earlier that making the tafel into the ikar is only a *safek megureshet*, whereas here he says pasul.

But the Shulchan Aruch rules otherwise. He writes that if the non-Jewish name was written as the main name and the Jewish name as *de-mitkarei*, it is **kasher**. The Acharonim point out that he has clearly **backtracked** from the Beit Yosef's first reason: if the problem were changing the *matbea*, this would be pasul. He must hold the other reason, tafel and ikar. And we learned that he rules like the Rivash, that with *de-mitkarei*, even if the tafel was put first, it is fine, because both names are expressed. Only with ***vechol shum*** does putting the tafel first make it the ikar.

The Rabbi added his own reservation: "I'm not comfortable with this idea that Rabbeinu Tam has the status of *matbea shetav'u chachamim*." That is a very specific idea, found in the Gemara about how the Tannaim fixed the text of the get. To say that a ruling of Rabbeinu Tam becomes *matbea shetav'u chachamim* is "quite difficult."

The bottom line

What was written	Ruling
Jewish name *vechol shum*	Lechatchila
Jewish name only	Kasher bediavad
Non-Jewish name *de-mitkarei* Jewish name ("Paul *de-mitkarei* Pinchas")	Kasher (Shulchan Aruch)
Non-Jewish name *vechol shum* ("Paul *vechol shum*")	Pasul, because the tafel has been made the ikar (Shulchan Aruch and Rema)

What counts as a "non-Jewish name"?

The **Pitchei Teshuva** brings the **Get Pashut**: this only applies when the name given at his conversion is a **non-Jewish name**. If he converts to Christianity and his Hebrew name Yehuda is now Daniel, which is not intrinsically a non-Jewish name, that is not a problem, and one may write "Daniel *de-mitkarei* Yehuda". For the Get Pashut, the problem in Rabbeinu Tam is mentioning a completely non-Jewish name.

The **Pitchei Teshuva himself** rules differently: the problem is not the non-Jewish name as such, but that one is **condoning a name given as part of his conversion**. Even a biblical name, if given to him as part of his conversion to Christianity, counts as a non-Jewish name.

The Rabbi agreed with the Pitchei Teshuva. "What is a non-Jewish name today? It's very difficult to argue that there is a non-Jewish name today." There are Jews called Paul. "I think today it's more about the name you were given... it's part of the conversion process which is the problem, not so much the name per se."

All of this applies equally to a woman who has left the faith.

Part 4: When the Jewish Name Has Been Forgotten (Seifim 5-6)

"The major discussion on this seif and the next seif": the Shulchan Aruch rules to write the Jewish name. **Which Jewish name?** One the Jewish community still uses for him? Or even one that has been completely forgotten (*nishtakach*), because he has assimilated so fully that everyone knows him only by his non-Jewish name? The Rabbi gave the example of **Pablo Christiani**, the apostate who disputed with the Ramban in 1263. Everyone knew him as Pablo.

The Maharik

The **Beit Yosef** quotes the **Maharik**, who distinguishes:

- **A non-Jewish name no Jew would ever have:** even if the Jewish name has been forgotten, write the Jewish name. Such a name is so foreign that everyone must know this person has another, Jewish name.
- **A non-Jewish name that, in rare cases, might be given to a Jew:** write the Jewish name only if it has **not** been forgotten. If it has been forgotten, write the non-Jewish name.

(A student suggested a name like Mohammed as one no Jew would have. The Rabbi was not even sure of that, given intermarried families.)

The Beit Yosef asks: how is this logical? The whole point of the names is that we know who the person is. If the Jewish name is forgotten, what is the point of writing it? He leaves the Maharik with a *tzarich iyun*.

The Shulchan Aruch and the Acharonim

The difficulty is that the Shulchan Aruch in **Seif 5** simply writes that a meshumad divorces with his Jewish name, **without distinguishing** whether it was forgotten. And in **Seif 6**, a **ger** who wrote his original non-Jewish name is kasher even though it has been forgotten.

- One could read the Shulchan Aruch as ruling like the Maharik both ways: from Jew to non-Jew or non-Jew to Jew, even a forgotten name is kasher.
- **The Beit Shmuel says that cannot be.** Rather: for a meshumad whose Jewish name has been forgotten, one writes the non-Jewish name. Rabbeinu Tam was speaking where the Jewish name was still in use, and **Seif 6 is only bediavad**. A ger who wrote his non-Jewish name is fine bediavad, but lechatchila he should certainly write his Jewish name. So too in Seif 5: bediavad, writing the forgotten Jewish name is fine.
- The **Get Pashut** rules the same way, and says explicitly: where the Jewish name has been forgotten, write **both names explicitly**, the non-Jewish name and the Jewish name.

A student suggested a distinction: a ger has turned into a Jew, so there is no penalty for using his old name. The Rabbi did not see the logic. "It's not a matter of *knas*." It is about identification: "we need to maintain our standards of being able to recognise what a get is."

"At the end of the day, what's most important is the get. We need to know who it's for."

Part 5: No Titles in the Get (Seif 7)

The Shulchan Aruch, quoting the Rema in effect: if he is not fitting to be called *Rav* or *Chacham*, but people call him that, the get is still kasher, since his name is written. But **lechatchila, no honorifics**: not Rav, not Chacham, not *mori*, not *ha-kadosh*.

- **The Beit Shmuel is not happy with this.** He brings the **Shiltei Giborim**, about a get where the man was "Rav Tuvia." If he is indeed a Rav, or his father is, why not write it?
- **The Get Pashut:** since the minhag has become not to write any honorifics, it is **not considered a change** to omit them.

This is standard practice across the Jewish world. The ketuba is very different: "you have all kinds of titles," especially in some Sephardi ketubot, which have "very extravagant titles."

The one exception the Acharonim seem to accept: where **two people in town have exactly the same name**. Later in the siman we learn that one then adds the next generation up. If one of them is a Rav, the title can serve as a *siman* to distinguish them. With all the *de-mitkarei* we write today, the Rabbi thought two identical full names in one town is quite rare.

Kohen and Levi: Ashkenazim and Sephardim

Here there is a big difference between Ashkenazi and Sephardi gittin.

- **Terumat HaDeshen:** it was the common practice to write Kohen or Levi, so one should write it.
- **Beit Yosef** does not argue on the reasoning; he simply says **it never became the minhag** (*lo nahagu*). That is why the Shulchan Aruch says nothing about it, and why he elsewhere writes explicitly that one does not write titles.
- **Rema:** Ashkenazim do write Kohen and Levi.

The Rabbi tied this to a recurring theme: "The more you write, the more trouble you get yourself into." The Shulchan Aruch's approach: no *kinuim*, no Kohen or Levi, "just let's leave it nice and simple: his name, father's name, and that's it."

Sephardim today write no titles at all, not Kohen and not Levi. The **Panim Me'irot** says that if the Shulchan Aruch rules that lechatchila one does not write it, how can it be pasul bediavad? So for Ashkenazim it is written lechatchila, but omitting it is not pasul.

Where is "Kohen" written?

Opinion	Text
Rema	Write Kohen **once, at the end**: *Ploni ben Ploni ha-Kohen*
Get Pashut	*Ploni ha-Kohen ben Ploni*, because the father being a Kohen does not make the son one: **he may be a *chalal***. Once you write "*Ploni ha-Kohen ben Ploni*", you know the father is a Kohen too
Get Pashut on Levi	Agrees with the Beit Shmuel that Levi goes at the end, since a Levi's son is always a Levi

The Perth students recalled writing a Levi at the end. That is consistent with all opinions, so "no proof" for a Kohen.

Kohen and the kinui

The Rema: write the **nickname after "Kohen"**, not before, otherwise people may think "Kohen" is part of the nickname. So: *Yitzchak ben Avraham ha-Kohen ha-mechuneh Itzik*, or *Yitzchak ha-Kohen ben Avraham ha-mechuneh Itzik*. Writing Kohen at the end is less of a problem with *de-mitkarei*, since one would never use "Kohen" as a *de-mitkarei*.

If Kohen or Levi was omitted

- **Terumat HaDeshen:** it is **pasul**, since the minhag is to write it.
- **Beit Yosef** disagrees: omitting it is no worse than *hanicha* (writing only the main name), which we learned in Seif 1 is kasher.
- **Rema:** kasher *bimkom dechak*.
- **Beit Shmuel** is even more lenient: **any *sha'at hadechak***, even if the get has **not yet been given**. If there is any difficulty in writing a new get, the existing one may be given. "It's a chumra, this Kohen-Levi business."

A student from Perth described exactly such a case: a get sent from Sydney was found, when they received it, not to have "ha-Levi". It had not yet been given; the husband had gone to Melbourne and it took two years to find him. They gave the get. The Rabbi confirmed: "That's based on the Beit Shmuel." One could have argued the Rema only means after the get was given, "but no, that's what the Beit Shmuel comes to say."

A doubtful Kohen or Levi

The Rema: if there is a doubt whether he is a Kohen or a Levi, give **two gittin**. The **Pitchei Teshuva** explains that this means a **real doubt**, with genuine grounds, such as conflicting testimony. Not every "perhaps."

The Rabbi recalled a case: the London Beth Din was doing a second get for a man whose first divorce had been done years earlier elsewhere. He had remarried an Ashkenazi woman and was now divorcing her. He was completely non-religious and there was no record of whether he was a Kohen, Levi or Yisrael. The London Beth Din called to ask whether their files showed anything. Nothing was found, so **they left it out entirely**. If one simply doesn't know, you would need three gittin (a regular get, a Kohen get, a Levi get). "Obviously we're not talking

about that." In such a case one gives a get **without any titles at all**. Two gittin are only for a serious doubt between Kohen and Levi.

The Rema ends: write *Ploni ben Ploni*, not *bar*. Although the get is mostly Aramaic, for the name *ben* is the clearer form.

Seif 7 in brief: no honorifics; Kohen and Levi, Sephardim don't, Ashkenazim do; bediavad, with any difficulty, one can be lenient.

Seif 8 is the same machloket as Seif 1: the Shulchan Aruch writes *vechol shum*, while the Rema writes the *de-mitkarei*.

Part 6: The Father's Name (Seif 9)

The Shulchan Aruch writes that if the father's name was not written, the get is **kasher**. Notably, he never says that lechatchila one must write the father's name; he only says that if it is missing, it is kasher.

- **Rosh** (regarding the woman's father) and **Rashba** (regarding the man's father) both say a get without the father's name is kasher. Their proof: a **ger**, or a **shetuki** (whose father is unknown) or **asufi** (a foundling), where the father's name cannot be written, and their gittin are obviously valid.
- The **Terumat HaDeshen** implies it is pasul, but the Shulchan Aruch, Rema and Acharonim all rule it is kasher.

The Noda BiYehuda's concern

The **Pitchei Teshuva** brings the **Noda BiYehuda**, who raises concerns:

1. He did not find this in the responsa of the Rashba, though he can rely on the Beit Yosef for it.
2. More seriously: perhaps the Rosh and Rashba said the father's name is unnecessary **when gittin still wrote the place of residence** (*mekom dirah*). We learned in Seif 2 that until the Smag and Smak, gittin wrote the place of residence; only then, because Jews were wandering in exile, did they write the place where they were standing. Perhaps the Rosh and Rashba would not agree today.

So the Noda BiYehuda says one should definitely write the father's name, and **only *bimkom igun*** be lenient.

The Rabbi's view of today's practice: when there are doubts about the father's name, one need not be overly concerned. Today we have the **records of the Beth Din** (*ma'aseh beit din*), which act as a form of identification, essentially our equivalent of the *mekom dirah*. So the Noda BiYehuda's concern is less pressing, and writing the names as people are known would suffice.

A Kohen who may be a chalal

A student asked: if the father is suspected to be a Kohen, but the son might be a *chalal* (disqualified from the kehuna) or a Yisrael, what then? The Rabbi: in such a case it is better to **leave out the father's name**. "For sure you don't want to get it wrong." The same applies when it is well known that the mother had a relationship that would make the child a chalal.

A student asked about a Kohen married to a woman forbidden to him. As a *knas* (rabbinic penalty), the community gives him no honour as a Kohen: he is not called first to the Torah. Do we still write "Kohen" in his get? The Rabbi thought perhaps yes, since by divorcing her he regains his kehuna, and the Shulchan Aruch elsewhere speaks very sharply about forcing such a Kohen to divorce. "Tomorrow he can be called up." He said he would look into it further.

Kinuim of the father

The father's nicknames and *de-mitkarei* are written, but if left out, the get is still kasher, just as it is kasher if the father's name is left out entirely.

- If father and son share the same nickname, **write the kinui on both names**. Writing it once at the end implies it belongs to only one of them.
- **Rema:** if the kinui is written only once at the end, for example "David ben David ben Yishai *ha-mechuneh* David", it is **pasul**.
- **Shach and Beit Shmuel disagree.** The Shach brings a proof from **Choshen Mishpat**: a document says "Yosef ben Shimon *nun-reish-vav*" (may his light shine, meaning the father is alive), and there are two men called Yosef ben Shimon in town. One's father is alive, the other's died before the document was written. We still cannot collect from either, because perhaps "*nun-reish-vav*" refers back to Yosef and not to Shimon. So we see that a phrase at the end **can be read as referring to the beginning**. Therefore bediavad the get is not pasul: since the kinui can be read as going back to the first name, it is not a *shinui shem*.

Part 7: The Ger, the Shetuki and the Asufi

The Shulchan Aruch: for these, write **only their own names**, and not the name of their father.

"Ben Avraham Avinu"

Later in the siman, the Shulchan Aruch writes that in the get of a ger one writes "*Ploni ben Avraham Avinu*". That is interesting, since here it says only his own name. The background:

- **The Rosh** wrote simply "*ben Avraham*".
- The Acharonim disagree: "*ben Avraham*" gives a **completely wrong impression**, that his father's name is Avraham. Some say it would even make the get pasul, as a change in the name.
- So either write "***ben Avraham Avinu***", or write no father at all. That is why the Shulchan Aruch writes *ben Avraham Avinu*. **Never write "ben Avraham"** alone.

When the father is not Jewish, or unknown

"This is by the way *nogea* today." What do you write?

- The Shulchan Aruch, quoting the Rashba: for a shetuki or asufi, write **just his name**, since the father's name is unknown.
- The **Dagul Merevava** asks from the Gemara's **Rav Mari bar Rachel**, whose father was not Jewish and who was called by his mother's name. Why not write the mother's name? He answers: where the father is **known to be non-Jewish**, write the mother's name; where the father is **unknown**, write nothing.

- The **Chatam Sofer** asks: what is the difference? Either way the father's name cannot be written.

What is clear: **where the father is not Jewish, everyone agrees you write the mother's name.** For a shetuki and asufi there are different views:

View	What to write
Chatam Sofer, Get Pashut	The mother's name, just like a non-Jewish father; there is no difference
Shulchan Aruch (Rashba)	Just his own name
Some (cited and rejected)	"*ben Avraham Avinu*". Rejected as misleading: a ger has more leniencies than a shetuki or asufi (Siman 4), so writing *Avraham Avinu* gives the impression he is a ger and could lead to leniency where the chumrot of a shetuki apply

Lema'aseh: with a non-Jewish father, we write the mother's name if we know it. For a shetuki or asufi, write the mother's name or nothing, but **never "*ben Avraham Avinu*"**.

Next time: Seif 10, changes in the father's name, "quite a big seif," after which the seifim get shorter.

Summary of the Halachot

1. **A meshumad can give a get.** Whether he can receive a get for his daughter is questioned by the Get Pashut.
2. **His name:** write the Jewish name and *vechol shum* (Rema), alluding to the non-Jewish name without writing it. Bediavad, the Jewish name alone is kasher (Beit Shmuel, like the Rosh).
3. **Non-Jewish name *de-mitkarei Jewish name is kasher (Shulchan Aruch). Non-Jewish name vechol shum*** is pasul, since the tafel became the ikar.
4. **What counts as a non-Jewish name** (Pitchei Teshuva): a name given as part of the conversion, even a biblical one.
5. **If his Jewish name has been forgotten** (Beit Shmuel, Get Pashut): write both names explicitly; bediavad the Jewish name alone is kasher. A ger's original name is kasher only bediavad.
6. **No honorifics** in the get, except perhaps to distinguish two men with identical names.
7. **Kohen and Levi:** Sephardim don't write them; Ashkenazim do (*Ploni ha-Kohen ben Ploni* per the Get Pashut; Levi at the end). Omission is kasher in any *sha'at hadechak*, even before the get is given (Beit Shmuel). Two gittin only for a real doubt; with no information at all, write no titles.
8. **Father's name:** if omitted, kasher (Rosh, Rashba); the Noda BiYehuda prefers to write it, but Beth Din records today serve as identification. Where the son may be a chalal, leave the father's name out.

9. **A shared kinui** should be written on both names; bediavad, written once is kasher (Shach, Beit Shmuel).
10. **Ger:** *ben Avraham Avinu*, never *ben Avraham*. **Non-Jewish father:** the mother's name. **Shetuki and asufi:** the mother's name or nothing, never *Avraham Avinu*.

Watch or listen to this shiur: youtu.be/VoAK5naNTIU · More shiurim: rabbikada.com